Standard Takers or Standard Makers? The EU AI Act, African AI Developers, and the Politics of Regulatory Transplantation

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Abstract. The entry into force of the EU AI Act in August 2024 marks a critical juncture for AI governance globally, and particularly for African developers and institutions seeking to define their own regulatory futures. In this paper, we examine the regulatory tension between the EU AI Act and the African Union Continental AI Strategy, which seeks to position Africa as a "standard maker" rather than a passive recipient of externally produced governance frameworks. Through the mechanism of the Brussels Effect, we argue that the EU AI Act is poised to become a de facto global standard, compelling African developers to comply as a condition of EU market access regardless of where development occurs. Drawing on regulatory transplantation theory, we analyze how the Act embeds institutional assumptions concerning legal capacity, conformity assessment infrastructure, and risk categorization that are specific to European contexts and do not transfer neutrally to African settings. We map African AI governance at continental and national levels, identify three developer profiles with varying degrees of exposure to the Act's extraterritorial obligations, and demonstrate that wholesale transplantation risks reinforcing, rather than resolving, existing governance asymmetries. To address this, we propose a selective-adoption framework that distinguishes elements of the Act suitable for direct adoption, those requiring contextual adaptation, and those demanding independent reconceptualization at the AU level. We conclude with a four-part research agenda oriented toward empirically grounded, Africa-led AI governance design.

Keywords: EU AI Act, AI governance, Africa, Brussels Effect, regulatory transplantation, Global South, Extraterritoriality, Participation Paradox, SME Compliance, GDPR Africa

1 Introduction

Melody Musoni's call for African countries to become "standard makers, not standard takers" captures a defining challenge in contemporary AI governance [1]. That challenge has become more pressing with the entry into force of the

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EU AI Act in August 2024, the first comprehensive horizontal legal framework enacted by a major jurisdiction to govern the lifecycle of AI systems [2]. Through its phased implementation, the Act is beginning to translate broad governance principles into binding obligations for the development, deployment, and use of AI. At the same time, African institutions have accelerated efforts to articulate their own governance directions. The African Union Continental AI Strategy, the Africa Declaration on Artificial Intelligence, and a growing number of national strategies, including those of Kenya, South Africa, and Ghana, collectively signal an emerging commitment to sovereign, contextually grounded and development-oriented AI governance [3–6]. These parallel developments frame an important moment for inquiry. As external regulatory models gain global influence and African governance frameworks continue to take shape, the central question is no longer whether Africa will participate in AI governance but how it will do so on its own terms.

The collision between these two trajectories constitutes the central problem that this paper addresses. The extraterritorial clause of the EU AI Act, Article 2(1)(c), extends its obligations to any developer whose AI outputs reach EU users, regardless of where development occurs. African developers who target EU markets, work with EU-funded partners, or seek EU investment face compliance obligations calibrated to a European institutional context, without access to the support infrastructure the Act creates for EU-based firms. Meanwhile, African governance frameworks remain largely aspirational, creating conditions where external regulatory logic fills the vacuum before domestic frameworks are established.African developers who build AI systems for European partners or markets face the full weight of the EU AI Act's compliance obligations, including assessment of conformity, documentation requirements, and the mandatory appointment of an authorized EU representative while accessing none of the regulatory sandboxes, reduced fee schedules, or dedicated support channels the Act creates for European firms.[7].

The research question this paper pursues is therefore not whether the EU AI Act will affect African developers, but whether the frameworks it embeds are appropriate for African governance priorities, and what a more contextually grounded alternative will look like. This paper argues that wholesale regulatory transplantation risks reinforcing governance asymmetries and that selective, contextually grounded engagement with the EU framework is both necessary and achievable. This paper makes three principal contributions: (1) analyze the EU AI Act and the institutional assumptions embedded in it; (2) map African AI governance at continental and national levels and identify the structural conditions shaping developer exposure to the Act; by developing a topology of African developer exposure to the Act across three profiles that capture meaningfully different compliance conditions and (3) assess which elements of the Act merit adoption, which require adaptation, and which require independent reconceptualization in African contexts.Together, these contributions operationalize what selective and critical engagement with the EU framework can look like in prac-

tice for Africa, hence moving the conversation beyond the binary of wholesale adoption or outright rejection.

The paper proceeds as follows. Section 2 reviews the relevant literature. Section 3 analyzes the architecture and extraterritorial reach of the EU AI Act. Section 4 maps the African AI governance landscape and examines the collision with African developers across three profiles. Section 5 presents a structured adoption assessment, a research agenda, and conclusions.

Ultimately, this paper demonstrates that wholesale transplantation risks reinforcing governance asymmetries and offers a structured framework for selective, contextually grounded engagement

2 Literature Review

2.1 AI Governance as a Global Field

AI governance is defined as the processes, standards, and institutional built-in protections used by societies to ensure that AI systems are held accountable in ways that are safe and fair with human rights once they are deployed. [8]. The academic study of AI governance has grown rapidly since approximately 2018; Tallberg et al. [9] define the present AI governance environment as a disconnected yet overlapping assembly of standards, norms, and institutions that lack a unified direction or central authority. Roberts et al. [10] also find that despite burgeoning governance activity, most collective frameworks accommodate competing ideological positions without producing strong guarantees, leaving a global regime with a weak structure. What unites these analyses is the fact that they all recognize that AI governance is never politically neutral.

The dominant frameworks that shape global conversations today come overwhelmingly from high-income industrialized economies. They carry with them deep assumptions about strong legal systems, capable institutions, and individual rights that make sense in their own context but not so much in other contexts. In this paper, the term "Global North" refers to these high-income economies, primarily the EU, the United States, and other OECD members, which continue to set the pace in AI research, investment, and standard-setting. While the EU is used as the central example of regulatory influence from the Global North, the structural imbalances this paper discusses impact the whole world and not just one country. As pointed out by Png [11], this well while describing the participation paradox where Global South voices get invited to the table in these governance talks, but the real power dynamics, that is, who sets the rules, who controls the resources, almost always leave their most pressing concerns on the margins. Empirical work from Sub-Saharan Africa [12] drives this point home by showing just how persistent the disconnect is between the high-minded governance principles written into policy documents and the much more limited capacity that actually exists on the ground.

2.2 The Brussels Effect and Digital Regulation

The Brussels Effect, first coined by Anu Bradford in her influential 2012 article [13] and later expanded in her 2020 book[14], captures how the EU can reshape global market rules simply by virtue of its massive single market. Multinational companies often end up applying EU standards worldwide because maintaining separate regulatory versions proves too expensive. The GDPR offers the clearest precedent so far: Bendiek and Stuerzer [15] show how it spread through a mix of corporate compliance and formal legislative adoption across borders. Closer to home, Ferracane et al. [16] found that mirroring European data privacy rules has actually constrained digital trade between African countries rather than protecting it. This paper examines whether the EU AI Act is likely to produce similar ripple effects in the emerging tech ecosystem of the continent.

2.3 Regulatory Transplantation

Regulatory transplantation describes the transfer of legal rules, institutions, or governance models from one jurisdiction to another. It is rarely a balanced exchange; more often, a receiving country adopts frameworks developed elsewhere, driven by market pressures, aid conditions, or the pull of institutional similarity. The idea is well-established in comparative law and has been explored in areas like financial regulation, environmental policy, and, more recently, data protection. This process brings both promise and pitfalls. On one hand, it lets developing systems borrow tested solutions instead of starting from scratch. On the other, rules that work smoothly in their original setting can create unexpected problems when dropped into contexts with different legal traditions, weaker administrative capacity, or distinct social realities. Boshe and Goberna Caride [17] highlight this in the GDPR context, where African firms absorbed significant compliance costs without matching levels of institutional support. Building on that insight, we use the regulatory transplantation lens to scrutinize the EU AI Act, asking not just whether African developers will face its obligations, but whether adopting those rules domestically would actually advance African governance priorities.

2.4 AI Governance in Africa

The scholarship on AI governance in Africa has expanded rapidly since 2022. Okolo [18] observes that 36 out of 54 AU member states now have data protection laws in place, many shaped by the GDPR, which could set a precedent for AI oversight. Yet she warns that pressing development needs, limited regulatory resources, and the danger of importing mismatched frameworks remain serious hurdles. Ünver [19] offers one of the sharpest direct comparisons between the EU AI Act and the AU Continental AI Strategy; he notes the EU framework's limited avenues for citizen participation and cautions that simply copying it would create significant difficulties for African contexts. Fieldwork by Kwarkye [20] in Ghana and Rwanda adds nuance, showing that policymakers there treat

EU-inspired policies as selective borrowing, taking useful principles while adapting them locally rather than passively. Other policy research underscores deep resource asymmetries: Africa accounts for just 18% of the global population but holds less than 1% of the worldwide AI compute and data center capacity [21]. This uneven distribution of governance capacity itself becomes a critical variable across the continent. However, much of this literature still lacks is a structured, provision-by-provision assessment of how the EU AI Act might land in African realities; the gap this paper seeks to address.

3 The EU AI Act: Architecture and Extraterritorial Reach

The EU AI Act's regulatory architecture rests on three interlocking elements: a risk-based classification system, an institutional ecosystem that presupposes significant pre-existing capacity, and a jurisdictional reach that extends by design beyond EU borders.

3.1 The Risk-Based Architecture

The Act's foundational design principle is proportionality: the stringency of regulatory obligations scales with the degree of potential harm an AI system may cause to health, safety, or fundamental rights. This logic produces a four-tier classification structure that distinguishes between unacceptable risk, high risk, limited risk, and minimal risk, designed to focus regulatory attention where it matters most [2].

The unacceptable risk tier comprises AI practices that the Act prohibits entirely, including government-operated social scoring systems, real-time remote biometric identification in publicly accessible spaces, systems exploiting vulnerabilities of protected groups, and AI used to infer emotional states in workplace or educational contexts [2]. The high-risk tier is the Act's most consequential category. Systems within it may be placed on the EU market only after satisfying substantial pre-deployment obligations, including a risk management system covering the entire system lifecycle, data governance and quality protocols, technical documentation sufficient for competent authorities to assess compliance, automatic logging ensuring traceability of results, human oversight measures enabling designated persons to intervene or discontinue the system, and demonstrable standards of accuracy, robustness, and cybersecurity [2]. Before deployment, providers must complete a conformity assessment and register in a publicly accessible EU database. Third-country providers must appoint an authorized representative established within the Union.

High-risk use cases are enumerated in Annex III across eight domains spanning critical infrastructure, education, employment, essential services, law enforcement, migration, justice, and critical digital infrastructure.[1]

[1] The full domain list is provided in Annex III of Regulation (EU) 2024/1689 [2].

Table 1. EU AI Act enforcement timeline and current compliance status (as of April 2026)

Risk tier	Representative examples	Key compliance obligations	Maximum penalty	Applicable from
Unacceptable risk	Social scoring by governments; real-time biometric surveillance; subliminal manipulation	– Prohibited entirely – Systems must be discontinued	€35m or 7% turnover	2 Feb 2025
High risk	Healthcare, credit scoring, recruitment, law enforcement, critical infrastructure	– Risk management and quality protocols – Human oversight and logging – Conformity assessments	€15m or 3% turnover	2 Aug 2026 / 2027
Limited risk	Chatbots; deepfakes; AI-generated synthetic media	– Disclosure of AI interaction – Labelling of AI content	€7.5m or 1.5% turnover	2 Aug 2026
Minimal risk	Spam filters; recommendation engines; video games	– No mandatory obligations – Voluntary codes encouraged	N/A	N/A

The limited risk tier requires systems interacting with humans or generating potentially misleading content to disclose their artificial nature [2]. The minimal risk tier, encompassing the large majority of deployed AI applications, faces no mandatory obligations. Table 1 presents the four tiers in structured form.

Two features of this architecture warrant particular emphasis. First, the high-risk category is defined not by sector alone but by the combination of sector and function: an AI system that recommends films is minimal risk, whereas an AI system that determines whether a student gains access to university is high risk, even though both involve recommendation logic. Second, the conformity assessment requirement imposes an ongoing compliance burden that assumes

organizational capacity, legal counsel, and technical infrastructure that many small developers cannot easily provide [22].

3.2 Institutional Assumptions

The Act's institutional ecosystem presupposes two conditions that cannot be assumed in most African jurisdictions. First, the system requires pre-existing legal capacity: functioning independent administrative authorities, courts capable of imposing substantial financial penalties, accreditation systems for conformity assessment bodies, and a legal profession with developing AI Act expertise. None of these can be assumed as given in most African jurisdictions, and the Act provides no pathway for third-country developers operating in their absence. Second, even the provisions designed to reduce the burden on smaller developers are structurally inaccessible to non-EU companies. The regulatory sandboxes, reduced conformity assessment fees, and dedicated communication channels that EU Member States are required to establish are EU-internal instruments. An African developer subject to the Act's obligations receives none of the institutional support the Act creates, a point Thom-Okoroh [7] characterizes as an asymmetry of obligations without the corresponding asymmetry of support.

3.3 Extraterritorial Reach

The EU AI Act is not territorially confined. Article 2(1)(c) explicitly extends its application to "providers and deployers of AI systems that are located in a third country, where the output produced by the AI system is used in the Union" [2]. This output-based jurisdictional claim means that a developer based in Nairobi, Accra, or Lagos whose AI system's outputs are received by EU users is a regulated entity under the Act, regardless of where development took place or where servers are located. Third-country providers must also appoint an authorized representative physically established within the Union.

The global diffusion of GDPR compliance obligations demonstrates how this mechanism operates in practice: multinational firms standardized on GDPR-level practices globally because the cost of maintaining separate compliance regimes exceeded the cost of universal compliance, and African companies with EU market aspirations restructured their data governance practices around GDPR requirements regardless of whether their own governments had enacted equivalent legislation [16]. The AI Act will generate the same gravitational dynamic across the considerably more complex compliance landscape of AI system development. Three distinct pathways create exposure for African developers: direct EU market targeting under Article 2(1)(c); de facto compliance requirements as contractual conditions of EU-funded partnerships, even where systems are deployed exclusively in African markets; and AI Act compliance assessments incorporated into EU venture and institutional investor due diligence processes [7, 23].

4 African AI Governance and the Collision

4.1 The AU Continental AI Strategy

The AU Continental AI Strategy, formally endorsed by the AU Executive Council in July 2024, represents the most significant coordinated attempt to define African AI governance principles to date. The Strategy identifies five overarching focus areas: harnessing AI for development and prosperity; building AI capabilities through education and research; minimizing AI-related risks through governance frameworks; stimulating AI investment through regulatory certainty; and fostering regional and international cooperation [3].

The developmental framing of this architecture is analytically significant. Where the EU AI Act is fundamentally a market regulation designed to protect fundamental rights within a functioning single market, the AU Strategy is a development document designed to position AI as a tool for addressing Africa's most pressing socioeconomic challenges [19]. This difference in framing reflects a genuinely different theory of AI governance, one that centers the question of who benefits from AI before the question of who is harmed by it. The Africa Declaration on Artificial Intelligence, signed in Kigali in April 2025 by 54 African governments, extended the Strategy's ambitions by committing to a dedicated Africa AI Scientific Panel, a framework for African open datasets and African-language open AI models, and endorsement of an Africa AI Council as a permanent continental oversight mechanism [6]. The two-phase implementation design reflects a candid acknowledgment that governance capacity is a product to be built rather than a precondition that can be assumed. A candid assessment must also acknowledge that the AU Continental AI Strategy is a policy document rather than a binding regulation: it cannot compel member state action, impose penalties for non-compliance, or create institutional infrastructure without sustained political will that is unevenly available across 55 states [24].

4.2 National Governance Landscape and Structural Constraints

The practical reality of African AI governance is determined by national-level decisions that vary considerably in ambition, institutional form, and stage of implementation. Table 3 (see Appendix) summarizes the governance profile of seven key jurisdictions examined.

This diversity is a structural feature of African AI governance that any continental framework must accommodate, not a temporary condition of uneven development. The legal foundation for AI governance is not absent: approximately 36 of the 54 AU member states have formal data protection frameworks [18], and courts in South Africa, Kenya, and Ghana have each confronted AI-related legal questions in 2025, generating a body of case law that partially fills the regulatory gap [25]. Africa holds approximately 1% of global AI compute, 3% of the world's AI talent, and under 1% of global data center capacity despite accounting for roughly 18% of the global population [21], as illustrated in Figure 1. The talent gap reflects structural conditions, including persistent brain drain and limited

domestic research funding. Most consequentially, the data generated by African users, businesses, and public institutions is predominantly stored on platforms owned by foreign corporations, processed under foreign legal frameworks, and used to train AI models designed and deployed outside Africa [6]. Additionally, 83% of Africa's AI startup investment in early 2025 flowed to just four countries [26], indicating that conditions for AI development are highly uneven even within the continent.

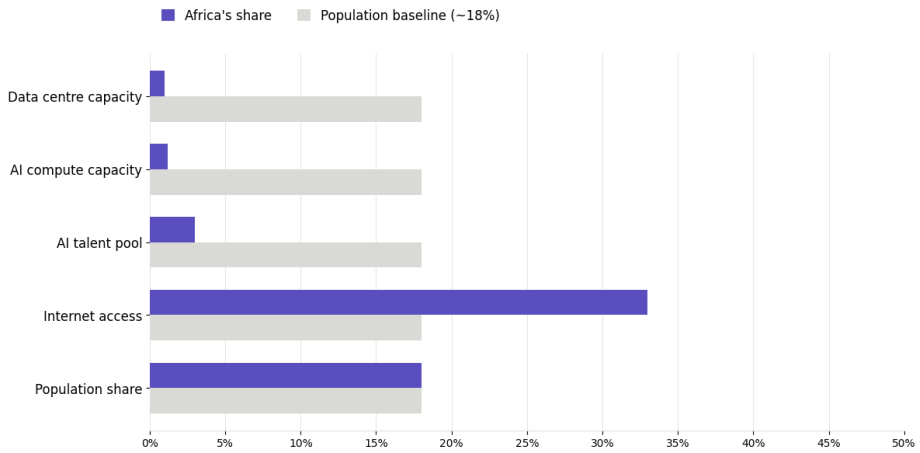


Fig. 1. Africa's share of global AI infrastructure and talent relative to population share[3]

4.3 Developer Profiles and Compliance Asymmetry

Figure 2 maps three developer profiles with varying exposure to the EU AI Act. Profile A developers, building exclusively for African markets with local financing, face no immediate obligations but will eventually be reached through continental governance channels as the AU Strategy is implemented. Profile B, the largest and most underappreciated exposure category, encompasses developers relying on European development finance or EU-funded partnerships who encounter compliance requirements as contractual conditions rather than direct legal obligations. Profile C developers face the Act's full force under Article 2(1)(c).

[3] Sources: Munga and Quansah (2025) [21]; African Union Commission (2024) [3]; African Union High-Level Policy Dialogue (2025) [6]. Internet access figure from ITU (2024). Figures are estimates reflecting available data as of 2024 to 2025. AI compute and data center figures represent sub-1% approximations.

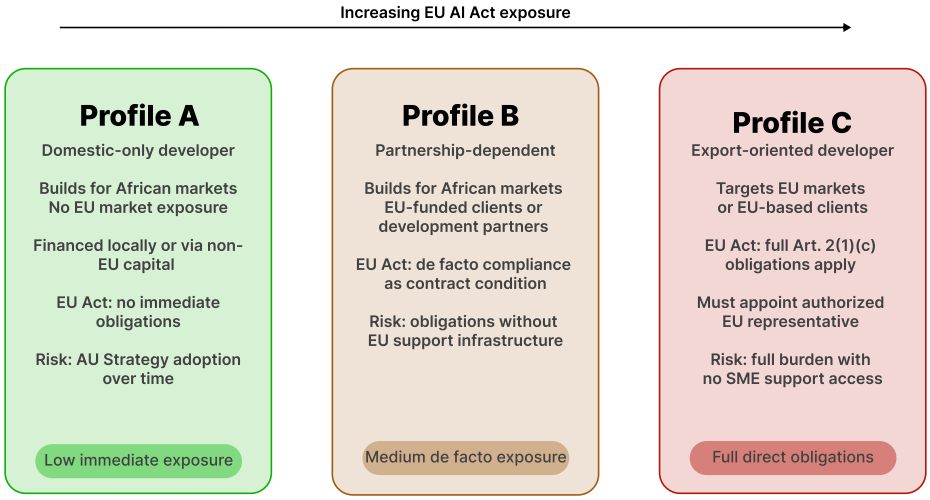


Fig. 2. Three developer profiles and their EU AI Act exposure. *Sources:* [7, 21]

The compliance burden the Act imposes on Profile B and C developers is not structurally equivalent to the burden it imposes on European SMEs, even where legal obligations are formally identical. EU-based developers benefit from regulatory sandboxes with priority SME access, reduced conformity assessment fees, and dedicated communication channels [22]. These provisions are inaccessible to non-EU companies by design. A Nairobi-based health-tech company developing an AI diagnostic support tool for European partner clinics faces identical conformity assessment requirements and registration obligations as a Berlin-based competitor, while accessing none of the institutional support or reduced fee schedules available to that competitor [7]. Boshe and Goberna Caride [17] document an analogous pattern in the GDPR context, where African companies adopted EU data protection standards through market-access pressure, bearing compliance costs without commensurate regulatory support.

4.4 The Definitional Problem: High Risk is Not Universal

The most structurally significant dimension of the collision is the least visible in compliance discussions: the EU AI Act's high-risk category was defined against a European risk context, and the assumptions embedded in that categorization do not transfer neutrally to African settings. Table 2 examines five high-risk categories, presenting the EU framing of each risk alongside the re-framing that African contexts invite.

Table 2. Comparison of EU risk framing and possible re-framing in African contexts across high-risk AI application domains.

High risk category	EU framing	African context re-framing
Healthcare diagnostics	Risk of misdiagnosis where human expert review is the default; liability and patient rights frameworks apply	AI may be better than no diagnosis in specialist-scarce settings; the relevant comparison is AI versus no care, not AI versus experts; strict compliance may limit access
Credit scoring and lending	Risk of discriminatory lending against groups with formal financial histories; harm is exclusion from available credit	Main risk is exclusion in largely unbanked populations; alternative-data AI scoring can enable access; heavy regulation may reduce financial inclusion
Education access decisions	Risk of unfair denial of education via automated scoring compared to human allocation	AI tools can expand access in under-resourced schools; the framing assumes existing fair human allocation systems, while AI may actually increase access
Recruitment and HR	Risk of opacity and discrimination in formal labor markets with legal protections	Risk includes excluding informal workers; AI may help visibility and access to jobs; compliance may burden startups tackling hiring inequality
Public service delivery	Risk of unaccountable automated decisions where functioning public systems exist	AI may be the only scalable service delivery mechanism; the alternative is often no service, not better human systems

These re-framings do not argue that risks are absent in African contexts. They argue that the risk calculus changes structurally when the counterfactual is an absent human system rather than a functioning one. Ünver [19] makes a related point, finding that the EU framework does not envisage concrete procedures for calibrating risk thresholds to local conditions. The question of which governance elements are genuinely portable from the EU framework is taken up in Section 5.

5 Selective Adoption Framework and Research Agenda

5.1 A Structured Adoption Assessment

Not everything in the EU AI Act is context-specific. Some core principles represent genuine governance innovations with broad applicability; others are inseparable from the institutional architecture of the European single market. Table 4

(see Appendix) presents a structured assessment, organizing the Act's major elements by their fit for direct adoption in African contexts and by what adaptation each requires.

Three elements translate well. The risk-tiering logic is sound governance design that does not depend on European institutional specifics and could serve as the architecture for AU-level regulation once contextually calibrated categories replace the EU's Annex III list [19]. The prohibited practices list is well-aligned with African civil society concerns, given documented uses of AI-enabled surveillance in recent electoral cycles [25]. Transparency obligations requiring disclosure of AI interaction are universally defensible and impose minimal compliance cost [2]. Four elements require contextual adaptation: human oversight requirements must account for settings where the alternative to AI is no service; regulatory sandboxes must be resourced through AU or national budgets; Fundamental Rights Impact Assessments must be rewritten around the African Charter on Human and Peoples' Rights; and Annex III categories must be redefined through participatory processes. Three elements require independent construction at the AU level: conformity assessment bodies, an African AI deployment registry, and SME support equivalents including a phased liability and enforcement regime tied explicitly to capacity milestones.

The distribution in Table 4 points to selective and critical engagement rather than wholesale adoption or rejection. There is a structural opportunity in this moment that policy discussions are underappreciated. African jurisdictions are designing governance frameworks before large-scale AI deployment in most sectors, rather than retrospectively regulating systems already embedded in institutional practice. Africa can observe the EU experience and design differently: governance first, with proportionate implementation timelines, phased enforcement tied to capacity milestones, and regional infrastructure shared across member states rather than replicated 55 times. The precedent that matters here is not GDPR but mobile money. When M-Pesa launched in Kenya in 2007, East Africa did not attempt to replicate European retail banking regulation. It developed fit for purpose oversight that enabled innovation while managing specific risks, and those frameworks became a global reference point [18]. African AI governance has the same opportunity.

5.2 Research Agenda

The framework developed highlights how much remains unexplored. Rather than offering tidy answers, it reveals the contours of an agenda that is still largely uncharted—particularly from an African standpoint. Four areas stand out as especially pressing.

First, we need far better *empirical grounding for any context-sensitive approach to risk.* The topic of "AI harms" is common in global debates, yet we have surprisingly little systematic evidence of what these harms actually look like in African settings; in rural health clinics, smallholder credit scoring, agricultural extension services, or automated public administration. Existing gover-

nance readiness assessments [12] are useful but insufficient. A serious continental mapping exercise that documents real incidents, their causes, and their consequences would move risk categorization from informed speculation to something grounded in African realities.

Participatory governance design at scale. Second, the field must confront the well-known "participation paradox" in AI governance. As Png [11] notes, inclusion is everywhere, yet the structural realities of power, language, resources, and institutional capacity often push community voices to the margins. The African Union's ongoing implementation process offers a rare window to move beyond tokenism. We need research that does not merely advocate for participatory methods but actually designs, tests, and refines scalable approaches capable of working across countries with vastly different population sizes, linguistic landscapes, and state capacities.

South-based comparative learning. African policymakers deserve a richer set of reference points than the usual EU template. Brazil's AI Bill, India's evolving regulatory experiments, and the ASEAN framework each grapple with the same core tension: how to regulate powerful technologies while pursuing development under real resource and institutional constraints. Comparative scholarship that seriously examines these "South–South" cases could give African governments a more relevant menu of options and help avoid the tendency to simply import solutions designed for very different political economies [9].

Empirical assessment of the Brussels Effect in AI. Finally, we cannot ignore the material consequences of regulatory diffusion from the Global North. Ferracane et al. [16] have already shown that GDPR-style rules carried measurable costs for intra-African digital trade. A similar rigorous assessment is now needed for the EU AI Act: What compliance burdens does it impose on African developers and startups? How does it shape market access, investment flows, and innovation pathways? Thom-Okoroh [7] has opened the legal conversation; the sociotechnical and economic dimensions urgently require equivalent depth.

5.3 Conclusion

The EU AI Act and the AU Continental AI Strategy arrived within weeks of each other in 2024, marking the moment when the question of who governs AI, on whose terms and for whose benefit, became impossible to defer. This paper has argued that the answer cannot simply be Brussels.

The EU AI Act is a genuine governance achievement. Its risk-tiering logic is sound, its prohibited practices list is broadly aligned with African civil society concerns and its transparency obligations are universally applicable. But it also embeds institutional assumptions about legal capacity, conformity assessment infrastructure, risk counterfactuals, and liability architecture that reflect the European single market and not the conditions under which African developers build and deploy AI. Transplanting it wholesale would impose compliance burdens calibrated to a context that most African developers do not inhabit, while providing none of the support infrastructure, the Act creates for those it was designed to protect.

The core contributions of this paper are a typology of developer exposure (Figure 2), a contextual re-framing of risk (Table 2), and a structured adoption assessment (Table 4) that together operationalize selective and critical engagement with the EU framework. The broader argument is that regulatory compliance and governance appropriateness are not the same thing. A governance framework that serves African citizens is not one that satisfies the requirements of the European market. It is one built from empirical knowledge of African AI harms are designed through processes that include affected communities and enforced through institutions whose legitimacy is locally grounded. Africa has the political momentum, the continental architecture, and the growing research capacity to build that framework. What it needs is the empirical knowledge and methodological innovation to make contextually grounded governance a reality rather than an aspiration.

AI Usage Declaration

In preparing this paper, we used ChatGPT (OpenAI) and Claude (Anthropic) for the following purposes: editing and improving the clarity and readability of prose; restructuring sections; and checking consistency of citations and cross-references (as a third eye). All substantive arguments, analytical frameworks, empirical claims, and interpretive conclusions are the authors' own. No AI tool was used to generate original analysis, to produce or modify the tables and figures, or to conduct any literature search. All AI-assisted edits were reviewed and verified.

6 Appendix

Table 3. AI governance profiles across seven African jurisdictions. Sources: [20, 21, 25]

Country	Governance status	Key distinguishing feature
Rwanda	Dedicated AI policy office; participatory model	Most advanced continental governance architecture; AI governance incorporated into national innovation agenda
Kenya	Published national AI strategy 2025–2030	Explicit cross-sector obligations; existing fintech regulatory sandbox provides a foundation
South Africa	National AI Policy Framework 2024	Supported by operational data protection authority and active judicial engagement with AI-related disputes
Ghana	National AI Strategy 2023–2033	Explicitly draws on EU frameworks while grounding objectives in domestic political economy [20]
Nigeria	Sector-level digital economy policies	No unified AI legislation; governance proceeds through existing sectoral regulators
Ethiopia	Nascent institutional capacity	Active in continental processes; no dedicated national AI instrument currently in force
Senegal	Nascent institutional capacity	Active in AU Strategy development; governance relies on general digital economy frameworks

Table 4. EU AI Act elements and their fit for African adoption[4]

EU AI Act element	Underlying principle	Fit for adoption	What adaptation requires
Risk-tier architecture and Annex III categories	Higher stakes warrant more scrutiny; sector and function determine risk level	**High**	The tiering principle is sound and portable; the specific Annex III categories must be redefined through participatory African policy processes to reflect local service contexts and risk counterfactuals [19, 20]
Prohibited practices list	Some harms are absolute and cannot be risk-weighted	**High**	Well-aligned with African civil society concerns; the list should be extended to cover AI-enabled data extraction by foreign corporations and AI-facilitated cross-border surveillance, both documented harms in African contexts [25, 17]
Transparency obligations	Users should know when AI is making decisions	**High**	Universally applicable and low-cost; can be adopted immediately without preconditions [2]
Human oversight	High-stakes AI requires a human in the loop	**Medium**	Must account for settings where overseers lack training or authority; the relevant baseline is AI versus no service [19, 21]
Regulatory sandboxes	Developers need supervised testing environments	**Medium**	More impactful in African contexts than in Europe; must be resourced through AU or national budgets [3, 26]
Fundamental Rights Impact Assessment	Assess AI's impact on rights before deployment	**Medium**	Must be rewritten around the African Charter on Human and Peoples' Rights, incorporating its recognition of collective and peoples' rights [3, 24]
Conformity assessment bodies	Independent third-party verification of compliance	**Low**	Machinery does not yet exist in most jurisdictions; regional AU-level bodies are a more realistic and efficient architecture [7]
EU database registration	Public transparency about what is deployed	**Low**	An African equivalent under AU governance would better serve accountability goals without creating a compliance obligation that benefits European oversight [19, 7]
SME support provisions	Proportionate compliance for small developers	**Low**	Structurally inaccessible to non-EU companies by design; AU must develop equivalents, including continental sandboxes and south-south technical cooperation networks [7, 23]
Liability and enforcement regime	Accountability requires enforceable penalties	**Low**	Assumes judicial capacity developing unevenly across AU member states; phased implementation tied to capacity milestones is more realistic than wholesale adoption [27, 25]

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